



CHAPTER 104.

An Act to confer on the Minister of Labour and National Service powers with respect to the control of employment during the present emergency; and for purposes connected with the matter aforesaid. [21st September 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Minister of Labour and National Service (hereinafter referred to as "the Minister") may by order direct—

- (a) that, after such date as may be specified in the order, an employer to whom the order applies shall not, except with the consent of the Minister, publish any advertisement stating that he desires to engage any employee to whom the order applies; and
- (b) that, after the said date, such an employer shall not engage or re-engage any such employee unless consent to the engagement or re-engagement has been given by or on behalf of the Minister :

Provided that, before making an order under this subsection, the Minister shall refer a draft of the order proposed to be made to a committee appointed by him,

consisting of a chairman and equal numbers of members representing, respectively, organisations of workers and organisations of employers which appear to him to be concerned; and the Minister may pay to the chairman of any such committee as aforesaid such remuneration as the Minister may, with the approval of the Treasury, determine.

25 & 26
Geo. 5. c. 8.

(2) The Minister shall not, by virtue of any order made under this section, refuse consent to the engagement or re-engagement of an employee unless he is satisfied that an opportunity of suitable alternative employment is available to the employee; and, when he refuses consent, he shall notify to the employee any opportunity which he considers suitable, and the employee may appeal to the court of referees constituted under the Unemployment Insurance Act, 1935, which acts for the district in which he resides, and if that court is satisfied that no such opportunity as aforesaid was available to him, the court shall allow the appeal, and accordingly the consent of the Minister shall be deemed to have been given as from the date of the decision of the court.

(3) Where the appeal of an employee is allowed under the last foregoing subsection, the court shall, in accordance with regulations made by the Minister with the consent of the Treasury, award to the employee compensation in respect of any loss occasioned to him by reason of the refusal against which the appeal was brought, and such compensation shall be paid as part of the expenses of the Minister under this Act.

(4) The regulations made under this section shall make provision as to the compensation which may be awarded under the last foregoing subsection and as to the assessment of such compensation, and the regulations shall in particular provide for securing that benefit under the Unemployment Insurance Acts, 1935 to 1939, shall not be payable in respect of any period in respect of which such compensation has been awarded.

(5) An employer who contravenes the provisions of an order under subsection (1) of this section shall for each offence be liable on summary conviction—

(a) in the case of a contravention of provisions having effect by virtue of paragraph (a) of

that subsection, to a fine not exceeding one hundred pounds; and

- (b) in the case of a contravention of provisions having effect by virtue of paragraph (b) of that subsection, to a fine not exceeding one hundred pounds and, in respect of each employee employed by him in contravention of those provisions, to a further fine not exceeding five pounds for each day on which that employee is so employed.

(6) An order under subsection (1) of this section may be made so as to apply—

- (a) either to all employers or to such employers or class of employers as may be specified in the order; and
(b) either to all employees or to such employees or class of employees as may be so specified;

and may provide that any directions contained in the order shall not apply in any specified circumstances in which an employee ceases to be employed by an employer and is re-engaged by that employer or by his successor in business within a period specified in the order.

(7) Where, in respect of the employment of any person, there has been any contravention of the provisions of an order under subsection (1) of this section, that person shall not, by reason only of that contravention, be deemed to be employed under an illegal contract of employment.

(8) Any order under subsection (1) of this section may be varied or revoked by a subsequent order of the Minister.

2. Where the engagement or re-engagement of employees by employers is effected in accordance with arrangements made, whether before or after the commencement of this Act, between an employer or any organisation of employers and a trade union, being arrangements approved by the Minister, and in accordance with such directions, if any, as may be given by the Minister with respect to the operation of the arrangements, any provisions of an order made under subsection (1) of section one of this Act having effect by virtue of

Saving for engagements effected in accordance with trade union arrangements.

paragraph (b) of that subsection shall not apply to the engagement or re-engagement.

Appoint-
ment and
remunera-
tion of
inspectors.

3. The Minister may, with the approval of the Treasury, appoint such inspectors as he thinks necessary for the execution of this Act, and may pay to inspectors so appointed such salaries or remuneration as he may, with the approval of the Treasury, determine.

Inspection
of premises
and furnish-
ing of
information.

35 & 36 Vict.
c. 77.

1 & 2 Geo. 5.
c. 50.

25 & 26
Geo. 5. c. 8.

1 Edw. 8. &
1 Geo. 6.

c. 67.

9 Edw. 7.
c. 22.

4.—(1) An inspector appointed under this Act or under any of the following Acts, that is to say, the Metalliferous Mines Regulation Act, 1872, the Coal Mines Act, 1911, the Unemployment Insurance Act, 1935, and the Factories Act, 1937, or an officer appointed under section fourteen of the Trade Boards Act, 1909, may, if it appears to the inspector or officer to be necessary for the purposes of this Act so to do, and on producing, if so required, sufficient documentary evidence of his identity,—

- (a) enter, at any reasonable time, any premises other than premises used solely as a dwelling;
- (b) request any person whom the inspector or officer has reason to believe to be an employer or an employee to produce to the inspector or officer, and allow him to examine, such documents, and to furnish to him such information, being documents or information in the possession or under the control of that person, as the inspector or officer may specify.

(2) Any person who—

- (a) wilfully obstructs an inspector or officer in the exercise of any of his powers under the last preceding subsection; or
- (b) fails to produce or furnish any document or information in accordance with a request made to him under that subsection;

shall be liable on summary conviction to a fine not exceeding ten pounds.

(3) Any person who, in giving any information required to be furnished under this section, knowingly or recklessly makes any statement which is false in a material particular, shall be guilty of an offence and liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds or to both such imprisonment and such fine.

5.—(1) Any order or regulation made under this Act by the Minister shall, as soon as may be after it is made, be laid before Parliament and together with any such order there shall be laid before Parliament a copy of any report made by a committee constituted in accordance with the provisions of this Act which has been made within such time as may have been notified to the committee by the Minister at the time of the reference; but any such order or regulation shall, notwithstanding anything in subsection (4) of section one of the Rules Publication Act, 1893, be deemed not to be a statutory rule to which that section applies.

Provisions
as to orders.

56 & 57 Vict.
c. 66.

(2) If either House of Parliament, within the period of forty days beginning with the day on which any such order or regulation as aforesaid is laid before it, resolves that the order or regulation be annulled, it shall thereupon become void, without prejudice, however, to the validity of anything previously done thereunder or to the making of a new order or regulation.

In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

6. Where any offence under this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any reckless neglect of duty on the part of, any director, manager, secretary or other officer of the body corporate, he, as well as the body corporate, shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Offences
by corpora-
tions.

7. The expenses incurred for the purposes of this Act by the Minister shall be defrayed out of moneys provided by Parliament.

Expenses.

8. In this Act the expression "employer" includes any person desiring to employ other persons, the expression "employee" includes any person seeking employment, and the expression "advertisement" includes any notice, circular or other document.

Interpreta-
tion

9. Notwithstanding anything in the Government of Ireland Act, 1920, the Parliament of Northern Ireland shall have power to make laws, in respect of matters exclusively relating to the portion of Ireland within

Provision as
to Northern
Ireland.
10 & 11
Geo. 5, c. 67.

their jurisdiction or any part thereof, for purposes similar to the purposes of this Act.

Short title,
duration
and extent.

10.—(1) This Act may be cited as the Control of Employment Act, 1939.

(2) This Act shall continue in force until such date as His Majesty may by Order in Council declare to be the date on which the emergency that was the occasion of the passing of this Act came to an end, and shall then expire except as respects things previously done or omitted to be done.

(3) No provision of this Act, except the provisions of the last preceding section, shall extend to Northern Ireland.

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